

HOUSE No. 4656

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 29, 2025.

The committee on Children, Families and Persons with Disabilities, to whom were referred the petition (accompanied by bill, House, No. 268) of Joan Meschino and others for legislation relative to the placement of foster children with their siblings; the petition (accompanied by bill, House, No. 269) of Joan Meschino relative to parenting time plans for certain foster children; and the petition (accompanied by bill, House, No. 270) of Joan Meschino relative to the long-term well-being consideration of a child's racial, ethnic, cultural, religious, and linguistic identity, reports recommending that the accompanying bill (House, No. 4656) ought to be pass.

For the committee,

JAY D. LIVINGSTONE.

HOUSE No. 4656

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to preserve family and sibling bonds for children in foster care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Subsection (c) of section 23 of chapter 119 of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by striking out said section and
3 inserting in place thereof the following:-
4 (c) (1) Whenever the department places a child in foster care, the department shall immediately
5 commence a search to locate any relative of the child, including the parents of siblings or half-
6 siblings who have custody of the siblings or half-siblings, or other adult person who has played a
7 significant positive role in that child's life in order to determine whether the child may
8 appropriately be placed with that relative or person if, in the judgment of the department, that
9 placement would be in the best interest of the child.
10 (2) The department shall seek to identify any minor sibling or half-sibling of the child. The
11 department and the court shall make reasonable efforts to place children removed from their
12 home and placed in the department's care, custody or responsibility together with all siblings and
13 half-siblings unless the department makes a showing to the court by clear and convincing
14 evidence that (i) a joint placement is contrary to the safety or well-being of any of the siblings or

half-siblings; or (ii) in cases involving more than four siblings or half-siblings, the department made active efforts to place all of the children together but, notwithstanding those efforts, it is impracticable for the department to do so. The court shall make written findings in support of its decision to deny the joint placement and may make any other order regarding placement of siblings and half-siblings in the children's best interests. If placing a child with all the child's siblings is impossible or contrary to the safety or well-being of the child or one or more siblings or half-siblings, the department shall place the child with as many of the child's siblings or half-siblings as is possible and consistent with the safety and well-being of the child and the siblings or half-siblings.

(3) In the case of siblings or half-siblings who are not jointly placed, the department shall make reasonable efforts to provide for frequent visitation and other ongoing interaction between them, unless the department makes a showing to the court by clear and convincing evidence that frequent visitation and other ongoing interaction is contrary to the safety or well-being of any of the children; provided further, that the court shall make written findings in support of its decision to deny the frequent visitation or other ongoing interaction. Any sibling or half-sibling may ask the court once every three months to review its decision regarding visitation or other ongoing contact or any action by the department implementing the court's decision.

(4) Notwithstanding any provision of this section, the department may separate a child from siblings or half-siblings to avoid immediate risk of harm to any child; provided, however, that if the department does separate a child from a sibling or half-sibling without prior court approval, it shall file a petition for court approval of its placement decision within 1 business day after the placement and provide notice to all counsel in any proceeding held pursuant to this chapter or chapter 210. The court shall hold a hearing regarding the placement change within 7 days of

filing the petition. The department shall bear the burden of showing by clear and convincing evidence at the hearing that the best interests of 1 or more of the siblings or half-siblings require a separate placement.

(5) Any child who is placed apart from any sibling or half-sibling, even if placed with other siblings or half-siblings, may ask the court once every three months to review its decision. The department shall bear the burden of showing by clear and convincing evidence that its current placement arrangements are warranted.

(6) If the court authorizes the department to place siblings or half-siblings in separate placements, or if the department places siblings or half-siblings in separate placements pending review by the court, the department shall make ongoing efforts to remedy any concerns found by the department that led to the separate placements, including the impracticability of joint placement of larger sibling or half-sibling groups. The department shall document its efforts in the case plan.

(7) Notwithstanding the definition of “custody” in section 21, the court may make any order to ensure the joint placement of, frequent visitation with, or other ongoing interaction with siblings or half-siblings as may be in the children’s best interests, including an order to place a child with his or her sibling or half-sibling in a foster home notwithstanding department regulations preventing such placement, provided the foster parent is willing to accept the child and able to provide appropriate care for all the children in the home.

(8) The department shall develop and implement a plan to increase the number of placements available for siblings and half-siblings. The department shall report annually on the status and effectiveness of its plan, including past and current data regarding the joint placement of siblings and half-siblings in the department’s care, custody, or responsibility, and the difficulties

impeding the department's ability to find joint placements, to the Joint Committee on Children, Families and Persons with Disabilities not later than March 31 of each year.

SECTION 2: Chapter 119 of the General Laws is hereby amended by inserting after section 26C the following section:-

Section 26D. (a) The department shall provide regular and frequent visitation between the parent and child in temporary custody or responsibility of the department, a licensed child care agency, or an individual as described in clause (i) of paragraph (2) of subsection (b) of section 26, unless the department finds that such visitation would be harmful to the child's health or safety.

(b) (i) Each child has the right to family time of a duration and frequency and in a setting that (A) is consistent with the developmental or clinical needs of the child and (B) promotes and preserves their connections with their family. Family time shall take place in person or outside of a department office whenever possible.

(b) (ii) Reasonable efforts shall be made by the department to allow regular and frequent parent-child visitation not be less than once every week and include at least 1 hour of visitation per week unless the department determines that such visitation would be harmful to the safety or well-being of the child.

(c) There shall be a rebuttable presumption that parent-child visitation will be supervised. The department may file a petition for court approval of unsupervised visits or plan to achieve unsupervised visits without further court approval, if it is deemed in the best interests of the child and promotes their connections with their family.

(d) The department may not suspend parent-child visitation for more than 4 weeks or terminate parent-child visitation unless it finds, by clear and convincing evidence, that parent-child visitation would harm the safety or well-being of the child.

(e) The court may issue orders for communication between the parent and child, including telephone calls, video calls, electronic mail, text messaging or regular mail. When issuing such orders, the court shall consider the child's age, developmental stage and any other needs of the child.

SECTION 3: This section shall be known and may be cited as the "Family Protection and Transparency Act."

(A) Definitions

"Department" refers to the Massachusetts Department of Children and Families (DCF).

"Parent or Guardian" is the person legally responsible for a child under investigation by the DCF.

"Miranda Rights for Families" is a set of procedural safeguards for parents and guardians subject to DCF investigations.

(B) Rights of Families During Department Emergency Removal Investigations

(1) Written Summary of Allegations

i. Upon first contact with a parent or guardian, the Department when investigating an emergency removal must make reasonable efforts to provide the guardian/parent a physical written summary of the allegations made against the parent or guardian in a language the parent or guardian can read and/or understand. This document must include:

- a. A clear, concise description of the alleged mistreatment; and,
- b. A statement of the parent or guardian's rights, including the right to legal counsel, and the right to remain silent.

(2) Explanation of the Investigation Process

i. The Department must also explain its investigation process. This written description must

107 include:

108 a. b. c. d. The purpose of the investigation and the steps involved;

109 The legal authority and obligations of the DCF in conducting the investigation;

110 A timeline for the investigation, including potential outcomes (e.g., unfounded,

111 substantiated); and,

112 Information on how the family can seek legal assistance or advocacy services.

113 (3) Recording of Interviews and Written Consent

114 i. ii. All interviews conducted with the parents, guardians, or children must be recorded, with

115 the parent or guardian's written consent.

116 The Department must inform the parent or guardian that any information provided can be

117 used against them in court.

118 (C) Notice of Rights to the Parent or Guardian

119 i. Before conducting any interviews or investigations, the Department must read and

120 provide in writing the following rights to the parent or guardian:

121 a. The Right to Remain Silent:

122 Parents or guardians are not required to answer any questions posed by the Department

123 without the presence of an attorney.

124 b. The Right to Legal Representation:

125 Parents or guardians have the right to consult with an attorney at any point during the

126 investigation and may have legal representation during any interaction with the

127 Department.

128 c. The Right to Understand the Investigation Process:

129 The parent or guardian has the right to be fully informed of the Department's

130 investigative process and timelines.

131 d. The Right to Review Evidence:

132 The parent or guardian is entitled to request and review any non-confidential evidence

133 obtained during the investigation.

134 (D) Training and Implementation

135 i. Training:

136 a. Department shall provide mandatory training to all caseworkers regarding the

137 requirements of this Act, including proper documentation of allegations, the

138 delivery of Miranda Rights for Families, and compliance with this Act's

139 procedural safeguards.

140 (E) Enforcement

141 i. Penalties for Non-Compliance:

142 a. If the Department violates this Act by failing to provide the required information

143 or infringing upon the rights of the parents or guardians as described in this Act,

144 any evidence or statements gathered in violation of the Act must be deemed

145 invalid and cannot be used against the parents or guardians in proceedings

146 involving the Department.